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Sent: 5/2/2022 1:41:00 PM
To: "Lowe, Claire (EGLE)" <LoweC9@michigan.gov>
Cc: "Jeff Dietlin" <utilities@cadillac-mi.net>; "Brady, Donal (EGLE)" <BradyD6@michigan.gov>; "Homier, Michael" <MHomier@fosterswift.com>
Subject: FW: City of Cadillac
Attachments: 05-02-22 Ltr to Clare Lowe - EGLE.PDF

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5-2-22

Madam, I am forwarding this letter at Jeff Dietlin's request in connection with the City of Cadillac's ongoing response to issues you have raised about the municipal industrial pretreatment program. Let me know if you have questions. Thanks. Chuck

Charles E. Barbieri

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From: Hunter, Lindi <LHunter@fosterswift.com>
Sent: Monday, May 2, 2022 1:25 PM
To: Barbieri, Charles <CBarbieri@fosterswift.com>
Subject: City of Cadillac

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ATTACHMENT TYPE:

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1928-2000
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Reply To: Lansing

Email: CBarbieri@fosterswift.com

May 2, 2022

Electronic Mail

Clare Lowe
Michigan Department of Environment, Great Lakes and Energy
Water Resources Division
2100 W. M-32
Gaylord, MI 49735

Dear Madam:

Re: City of Cadillac NPDES Permit No. MI0020257

At the request of the City of Cadillac ("City"), I am following up with a formal request for an extension to respond to the matters outlined in your letter of November 4, 2021. You will recall that additional time was requested in our previous letter of October 25, 2021, to allow the City to retain a consultant and review the matters that you have raised about the City's industrial pretreatment program. The retention of the consultant was delayed in part by City bidding requirements.

In any event, Jeff Dietlin, the Utilities Director for the City, provided you with an update on matters underway in his communication of April 28, 2022. We also understand that Fleis and Vandenbrink, the City's newly retained consultant, has been in communication with you on matters related to the industrial permit program and the matters raised in your past communications. In discussing the matter with Mr. Dietlin, we believe that an additional extension for a period of three months is appropriate under the circumstances.

Again, this request and the City's response are being made in a spirit of cooperation, without prejudice to its right and defenses. We thank you for your review, if you would like to discuss, please do not hesitate to contact this office.

FOSTER SWIFT

FOSTER SWIFT COLLINS & SMITH PC || ATTORNEYS

Clare Lowe
May 2, 2022
Page 2

Very truly yours,

FOSTER SWIFT COLLINS & SMITH PC



Charles E. Barbieri

CEB:LDH

cc: Donal Brady
Jeff Dietlin
Mike Homier

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